

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YUYIN FABIOLA SANCHEZ,

Petitioner

VS.

JORGE FRANCISCO PACHECO,

Respondent

) Case Number: FMS-13-386504

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME),
MINOR CHILD MAY SEE A PSYCHOLOGIST, TIER 2 MEDIATION.

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties to the proceeding are Petitioner Yuyin Sanchez (Mother) and Respondent Jorge Pacheco (Father). They share one minor child: Nala Alia Pacheco (DOB: 09/24/15).
- 2) On June 10, 2026, Mother filed a Request for Order seeking modification of the visitation orders, minor child to see a psychiatrist, a tier 2 mediation, and orders that minor child be permitted to speak with her during Father's custodial time. She is also seeking orders that they share equal access to the minor child's passport.
- 3) On July 13, 2026, Father filed a Responsive Declaration in which he asks the Court to deny Mother's requests.
- 4) On July 27, 2026, both parties appeared at the "Readiness" hearing and the parties were referred to FCS Mediation to occur on August 18, 2026 and set a return hearing for September 1, 2026.
- 5) On August 25, 2026, Father filed a supplemental declaration, which has been read and considered by the Court.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Mother's request to modify the existing parenting plan is GRANTED. Commencing September 1, 2026, Father's parenting time with the minor child shall be two days per week, on Father's days off and when he is available to provide care for the minor child. Father shall inform Mother is his two days off, as soon as his work schedule is available. Mother shall have care and custody of the minor child during all other times.
- 3) Mother's request that the minor child have her own cell phone is DENIED. However, the minor child may call Mother at any time during Father's parenting time. Father shall facilitate the placement of the phone calls. The minor child should feel free to call Mother whenever she likes and should not be prevented by Father from making the call.
- 4) Mother's request that the minor child be permitted to see a therapist is GRANTED. Father may select 3 names and submit them to Mother within 14 days. Mother shall then have 7 days to select the therapist from the 3 names submitted to her by Father.
- 5) Mother's request that the Court interview the minor child via a Tier II Mediation is DENIED.
- 6) Father's request to modify the existing Holiday schedule is DENIED.
- 7) Mother's request that the parties share the minor child's passport is GRANTED. The parents shall alternate holding the child's passport. Mother shall have possession of the minor child's passport from 09/01/26-08/31/27. Father shall the have the passport from 09/01/28-08/31/29. They shall alternate every year thereafter.
- 8) Neither parent make take the child outside of the United States, without the permission of the other parent. If the other parent denies consent, then the minor child shall not leave the United States.
- 9) Both parents shall participate in any decisions related to the minor child's education. Neither parent is permitted to act unilaterally. If a parent acts unilaterally, without informing the other

parent and without their consent. That conduct shall be deemed as not being in the child's best interest and could result in a change of custody.

10) All existing orders, not in conflict with the orders made herein, shall remain in full force and effect.

11) The Court will prepare the Findings and Order After Hearing.